

26STCV05602 26STCV05602

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MOTION FOR SUMMARY JUDGMENT

The Court tenders the following tentative decision in the matter Uneka Thomas v. All State Insurance Company, Los Angeles County Superior Court case number 26STCV05602, set for hearing on September 1, 2026. Uneka Thomas (Plaintiff) moves for summary judgment in her favor and against All State Insurance Company (Defendant). Defendant opposes the motion on procedural grounds. The Court denies summary judgment.

A. Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party can show evidentiary support for a claim or defense and if not to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure Section 437c, subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

As to each claim as framed by the complaint, a plaintiff "has met that party's burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action." (Id., § 437c, subd. (p)(1).) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389 (Dore).) Once the plaintiff has met that burden, the burden shifts to the opposing defendant "to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

B. Discussion

Plaintiff's motion is procedurally deficient. Plaintiff has not offered any evidence in support of her motion. Instead, she submits a separate statement of undisputed facts with references to various documents that have not been provided. Thus, Plaintiff has not met her initial burden of proving each element of the causes of action entitling her to judgment as a matter of law, as she has provided no evidence. Various documents are attached to her original complaint, but the purported separate statement does not reference any specific exhibits or pages included within the complaint's attachments. Plaintiff's motion is thus not in compliance with the requirements of Rule of Court 3.1350. Accordingly, the motion is denied.

Conclusion:

Plaintiff's motion is denied.